



THE
SUPREME
COURT

SUPREME COURT
OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[YEAR] LEXBY n

IN THE MATTER OF

Before:

Hallam CJ, Goffe, Blackmere, Sumberly, Elden, Coade, Steyne, Bowan, Aldermere

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

I. TORT, NOT CRIME

1. The criminal framing rested on **nulla poena sine lege**, a doctrine whose office is to constrain punishment, which
2. is irrelevant to this court: it does not punish, its only remedy is to make the work good. The criminal frame was a
3. category error producing two embarrassments: a jurisdiction-first gate by which breach evaporated exactly where the
4. spec was silent ("no statute, no breach, but Lexby does it anyway"), and a recidivist trip-wire ("second time it is
5. enforceable") that smuggled punishment back through the door of repetition. Both are discarded. Breach is recast in
6. the tort of negligence:
7. - Duty: a continuing duty of reasonable skill and care to every principal who relies on the work, arising from
8. the relationship itself (the neighbour principle, **Donoghue v Stevenson**), not waiting on statute.
9. - Standard: a graded hierarchy of endeavours, pleaded and found per engagement: reasonable skill and care
10. (default) / all reasonable endeavours / best endeavours. Conduct a responsible body of competent practice would
11. endorse is not breach (the **Bolam** qualification).
12. - Breach: a falling-below of the standard, a question of fact on the merits, never a punishment trigger.
13. - Remedy: remediation and restitution alone, proportionate. Punishment, fine and sanction are unavailable.
14. The no-statute case is cured at the gate: silence in CASE-LAW is no defence; it fixes the standard at reasonable
15. care; the matter is justiciable from the first act. The first-time / second-time rule is repealed as a criminal
16. artefact: there is one continuous standard. A genuinely novel, unforeseeable first failure is judged against
17. reasonableness, ordinarily founds no breach, and triggers a forward duty to spec the rule and remediate; the logged

- 18. ruling then makes the hazard foreseeable, so recurrence is breach of a now-known duty, the consequence always
- 19. restorative.

II. UK FIDELITY

- 20. "Federalism" is a constitutional solecism (it presupposes sovereign sub-states, of which a unitary realm has none)
- 21. and is struck. The correct frame is parliamentary sovereignty in a unitary state of plural jurisdictions under one
- 22. apex court: CASE-LAW is sovereign primary legislation (one global statute book, supreme, vendored to every repo);
- 23. case law is jurisdiction-local precedent (each repo a jurisdiction); the Supreme Court alone enacts, by elevating
- 24. a local ratio into realm-wide statute. On structure, fidelity and token economy coincide: First Instance is ONE
- 25. judge; Court of Appeal is 3; Supreme is 5, the full 9 reserved for constitutional questions. Permission to appeal,
- 26. standing, and the precedent fast-path screen matters before any bench convenes. Neutral citation [YEAR] LEXBY n;
- 27. ratio binds, obiter persuasive, per incuriam voids. A declaration of incompatibility flags case law that clashes
- 28. with the sovereign spec and refers it up, never striking the spec. Resisted as bloat: multi-judge first instance,
- 29. the default-9 bench, juries, oral-hearing theatre, multi-stage pleadings, interlocutory practice, a separate
- 30. costs/sanctions jurisdiction.

STATUTES ENACTED

- 31. CASE-LAW-4 (breach is tortious) · CASE-LAW-5 (standard + breach) · CASE-LAW-6 (remedy = remediation only) ·
- 32. CASE-LAW-7 (no-statute case) · CASE-LAW-8 (one continuous standard) · CASE-LAW-9 (unitary sovereignty) ·
- 33. CASE-LAW-10 (court structure) · CASE-LAW-11 (gates and devices) · CASE-LAW-12 (anti-bloat). Recorded in
- 34. ../CASE-LAW.md.

DIVISIONS ON THE BENCH (THE RECORD)

35. - Unanimous to allow the appeal, recast breach as tort, and strike federalism.
36. - Steyne and Bowan would have kept a first/second distinction re-theorised as foreseeability; the majority (Goffe,
37. Blackmere, Sumerly, Elden, Coade, Aldermere) abolished it for one continuous standard. Resolved by adopting the
38. continuous standard and absorbing foreseeability into it (CASE-LAW-8), preserving the minority's practical outcome.
39. - Goffe and Steyne pressed for a default Supreme 5 with 9 reserved; carried (CASE-LAW-10).

GOOD-LAW

Citation: [YEAR] LEXBY n

L LEXBY - PLAIN ENGLISH TRANSLATION

Lexby is an officer of this court. The bench speaks; Lexby translates.

SUMMARY

We were treating your AI's mistakes like crimes ("no punishment without a written law first"). Wrong model: Lexby never punishes, he only fixes things. It is now civil negligence: there is always a duty of care, the bar rises if you promised more, and the only outcome is to put it right. The "no rule so nothing happened" loophole is gone, and the "first time free, second time punished" rule is gone. "Federalism" was a US idea and wrong: one sovereign rulebook, each repo a jurisdiction under it. And the court got cheaper and more realistic: one judge at first instance, permission to appeal, settled points decided by citation. Unanimous.

Handed down by the SUPREME COURT of the Vibe Justice System (VJS). 6 June 2026.